

SENATE No. 2534

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, June 23, 2025.

The committee on Higher Education, to whom was referred the petitions (accompanied by bill, Senate, No. 928) of Lydia Edwards for legislation to ban legacy preferences in higher education; (accompanied by bill, Senate, No. 943) of Mark C. Montigny for legislation to ban discriminatory admissions practices at higher education institutions; and (accompanied by bill, Senate, No. 950) of Pavel M. Payano for legislation to require higher education institutions to issue an annual report to the attorney general and department of higher education on their prior year admissions preference, report the accompanying bill (Senate, No. 2534).

For the committee,
Joanne M. Comerford

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An Act relative to equitable higher education admissions policies.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9 of Chapter 15A of the General Laws is hereby amended by
2 adding the following paragraph:-

3 When deciding whether to grant admission to an applicant, a public institution of higher
4 education shall not consider the applicant's familial relationship to a person who attends or
5 attended the institution. A public institution of higher education shall not include in the
6 documents that it uses to consider an applicant for admission information that discloses the name
7 of any college or university that any relative of the applicant attended.

8 SECTION 2. Chapter 69 of the General Laws is hereby amended by inserting after
9 section 30A the following section:-

10 Section 30B. When deciding whether to grant admission to an applicant, a degree-
11 granting institution of higher education located in the commonwealth authorized to grant degrees
12 by the board of higher education shall not consider the applicant's familial relationship to a
13 person who attends or attended the institution. Such institution shall not include in the documents

that it uses to consider an applicant for admission information that discloses the name of any college or university that any relative of the applicant attended.

SECTION 3. The department of higher education shall review and make recommendations regarding the use of binding early decision admission policies in the commonwealth. For the purposes of this section, the term “binding early decision admission policy” shall mean an admission policy of a college or university that allows a student to apply at an earlier stage of the admissions process, receive an expedited admissions decision, and absent extenuating circumstances, requires the student to pledge to attend the institution upon receiving a decision of admittance.

The review shall include, but not be limited to, (i) the number of institutions that maintain a binding early decision admission policy; (ii) the number of students who apply and are accepted under that policy; and (iii) the impact of the policy on equity and diversity among enrolled students including, but not limited to, representation among enrolled students of (A) students of various economic statuses, including students that receive a maximum federal Pell Grant, a less than maximum federal Pell Grant and students that receive a federal subsidized Stafford Loan but not a federal Pell Grant; (B) students of diverse racial and ethnic identities, including underrepresented and vulnerable groups, disaggregated by major racial and ethnic subgroup; and (C) immigrant and first-generation students. In preparing the review, the department shall consult with the attorney general; the department of elementary and secondary education; the chairs of the joint committee on higher education; the joint committee on racial equity, civil rights and inclusion; the Advisory Council for the Advancement of Representation in Education and organizations concerned with equity and education in Massachusetts, including the Massachusetts Education Equity Partnership; the University of Massachusetts; the

37 Massachusetts State Universities Council of Presidents; the Massachusetts Association of
38 Community Colleges; the Association of Independent Colleges and Universities of
39 Massachusetts; and any other stakeholders that the department identifies.

40 The review and recommendations shall include analysis of the overall impact of binding
41 early decision admissions policies and make recommendations to public and private institutions
42 of higher education concerning their admissions policies. The review may also include
43 recommendations to the General Court for legislation.

44 The review and recommendations shall be published on the website of the department
45 and submitted to the chairs of the joint committee on higher education and the joint committee
46 on racial equity, civil rights, and inclusion no later than 1 year after the effective date of this act.

47 SECTION 4. Sections 1 and 2 shall take effect for admission decisions that lead to an
48 applicant's initial enrollment in a higher education institution in the 2026-2027 school year and
49 thereafter.